

File No.: EXP202206577

## RESOLUTION OF FILE OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following

### FACTS

FIRST: On May 26, 2022, a complaint was filed with entry registration number REGAGE22e00020731504 and REGAGE22e00021269853, before the Spanish Agency for Data Protection, against PRIMAVERA SOUND, S.L. with NIF B61978987 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that the Primavera Sound music festival, to be held from June 2 to June 12, 2022, established a registration system for attendees through an application called "AccessTicket," which required the provision of the National Identity Document or Passport, despite the fact that when these tickets were sold, the expected entry process was the normal and typical one for music festivals and existed in previous editions.

It is considered that this application and the entry process violate the Organic Law on Personal Data Protection and Guarantee of Digital Rights, in that companies should not exceed the collection of personal data that is not strictly necessary for the activity they carry out.

Furthermore, it indicates that attendees were coerced into using the application through the offering of gifts, and therefore requests that a precautionary order be issued to suspend the aforementioned application in the following stores:

\*\*\*URL.1

\*\*\*URL.2

\*\*\*URL.3

\*\*\*URL.4

And that Primavera Sound, S.L. and its Data Protection Delegate, UNIVER IURIS S.L. (\*\*\*URL.5) be warned to cease such practices.

Along with the complaint, a copy of the email received prior to the festival, which outlines the steps to authenticate in the AccessTicket application, and a screenshot from Twitter stating that access to the concert is granted via the mobile application, is provided.

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SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was forwarded to the complained party, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), by electronic notification, was received on June 14, 2022, as evidenced by the certificate in the file.

On July 12, 2022, a response letter from the complained party was received by this Agency, in which, in summary, it states:

- that the use of the "AccessTicket" application was necessary to, on the one hand, verify the identity of attendees and, in particular, attendees under 18 years of age, in order to prevent their access to the sale and consumption of alcoholic beverages within the venue, and, on the other hand, to restrict the possibility of a single ticket being used by more than one person, thus avoiding fraudulent ticket sales.
- that at all times, in the event of not wanting to use the AccessTicket application, attendees had the option to verify their identity physically.
- that only those personal data that were essential have been used, in accordance with the principle of

minimization, regulated in Article 5 1. c) of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, since as indicated in the privacy policy of AccessTicket, Primavera Sound only has access to the name, surname, date of birth, and image of the ticket holder for the festival, this obligation having been contractually transferred to the corresponding provider.

Annex 1, the privacy policy of the AccessTicket application, is provided.

- that as indicated in the various communications provided to the complainant and, in particular, in the "FAQs" that refer to the privacy policy, as well as in the privacy policy included on the Primavera Sound website regarding the "AccessTicket" application, it is stated that if any individual wishes to exercise any of the rights that pertain to them regarding data protection, they can do so by sending an email to the address \*\*\*EMAIL.1. In such a case, Primavera Sound will proceed to address the right that the interested party exercises without delay.

- that under no circumstances was access to the Primavera Sound Festival 2022 edition conditioned on the download and use of the AccessTicket application. Moreover, as indicated in the documentation provided by the complainant, it was expressly stated that:

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3/16

"In the event that you do not wish to validate the documentation through this app, the registration process will not be completed, and the attendee must do so in person at the Festival's incident area." Furthermore, as indicated in the FAQs, the following question is raised:

"Is it necessary to upload my identity document?" to which Primavera Sound responds:

"We ask for it to avoid the manual process of verifying official identity documents at the festival entrance and to prevent queues. AccessTicket performs a digital identity verification."

Annex 2 provides the FAQs, which were available in both Spanish and English.

- that the validation of the ticket to access the Festival could be done both through the AccessTicket application and physically, through the manual validation of the ticket.

It denies that at any time the Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights or the GDPR has been violated due to the use of the AccessTicket application, indicating that the data collected has been processed lawfully, fairly, and transparently, limiting the purpose and ensuring its integrity and confidentiality.

And finally, it states that in no case have attendees been forced or coerced in any way to use the AccessTicket application through the offering of gifts.

Primavera Sound understands that the use of AccessTicket has not generated any incidents; on the contrary, it has facilitated a more comfortable and faster access for attendees to the Primavera Sound festival, avoiding queues and crowds as has happened on previous occasions.

THIRD: On August 10, 2022, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following aspects:

#### INVESTIGATED ENTITIES

During the present actions, the following entities have been investigated:

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4/16

PRIMAVERA SOUND, S.L. with NIF B61978987 with address at C/ ROC BORONAT 142, 3rd - 08018

## BARCELONA (BARCELONA)

### RESULT OF THE INVESTIGATIVE ACTIONS

-1.-

Upon reviewing the documentation provided by the complainant and examining the response to the transfer from PRIMAVERA, it is perceived that:

-. The complainant attaches the email received: "Your ticket to Primavera Sound 2022," with the following text:

"Hello,

There is less than a month until Primavera Sound Barcelona - Sant Adrià 2022. It's here. Are you ready? Yes? Are you sure? We remind you that without the AccessTicket application, it will not be possible to access the festival venue.

So we recommend that you do not leave this process until the last moment.

Avoid queues on the day of your arrival at the festival by downloading the app today.

It is a very simple process that will only take you a couple of minutes.

You must carefully read the steps we now indicate to register your ticket.

Accessing the festival is ONLY possible with the AccessTicket application installed on your device and your ticket properly activated in the app before arriving at the festival.

To proceed with the registration of your ticket, you must open this email with your mobile device.

If you want to transfer your ticket to another person, you just have to send them this email so they can complete the entire registration process.

If you have received more than one email, it means that you hold more than one ticket. Please send these emails to your companions to expedite the registration process in AccessTicket."

"To verify the data, we need a photo of the official identity document of the attendee (DNI, passport, or any other valid analogous document in your country of origin). The registration of the official identity document allows us to verify the identity and age of attendees before the event.

AccessTicket only captures the following data: first name and last name, date of birth, and photo of the official identity document.

The photo of the registered documentation will be set as the profile image of the attendee in AccessTicket and will allow us to visually verify, at the festival entrances, that the profile photo in the application and the attendee are the same person.

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5/16

All data captured from your official identity document will be deleted two weeks after the event.

In the event that you do not wish to validate the documentation through this app, the registration process will not be completed, and the attendee must do so in person at the Festival's incident area."

(Note: the underlining has been added by the Agency)

On the other hand, throughout its written response to the transfer, PRIMAVERA indicates that:

1.- In the event that attendees do not wish to use the "AccessTicket" application, they have the option to verify their identity physically.

2.- Under no circumstances is access to the festival contingent upon downloading and using the "AccessTicket" application.

3.- The FAQ of the APP informs:

\*. Page 11: "Remember that you can only enter the venue with the application installed on your device and your ticket activated before arriving."

\*. Page 16: "Accessing the event is ONLY possible with the AccessTicket application installed on your device and with your ticket duly activated before arriving at the festival."

\*. Page 16: "Digital identity verification is optional; during the process, you can choose to have the process carried out by a person. Once identity is verified, the attendee will be able to access the venue, and we will delete all data contained in the application two weeks after the festival."

4.- The purpose outlined in section 3.a) of the App's Privacy Policy is based on the lawful basis of art.

6.1.b) of the GDPR: the processing is necessary for the performance of a contract to which the data subject is a party or for the application at the request of the data subject of pre-contractual measures.

5.- They inform that there is a data processor, SUM AND SUBSTANCE LTD (hereinafter SUM), which extracts the data subject to processing and automatically deletes those that it does not process. "The rest of the personal information that may be included in the uploaded identification document and the scan of the identification document itself will be automatically deleted and will not be accessible or processed by Primavera Sound."

6.- The category of personal data being processed is explained in section 7 of the App's Privacy Policy: PRIMAVERA "collects your email address (which you provide when using the APP), your first and last name, date of birth, and image. This data is obtained directly from the identification document you upload to the APP."

7.- Regarding the security measures applied to the processing, they refer to:

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6/16

- use of databases with limited access under firewall with high-security keys and selective permissions
- high-security standard
- PRIMAVERA has been audited
- high-security servers with encrypted access
- use of biometric data or high-complexity keys to access the data
- 2.-

According to the claimant, when purchasing the ticket, they were not informed about the need to download an app and provide an ID. On October 21, 2022, they navigated the website \*\*\*URL.6 to check whether prior notice had been given regarding the mandatory use of the "AccessTicket" application at the time of ticket purchase, but information about the Primavera Sound Barcelona 2022 festival is no longer available.

The result of the consultation conducted on the websites \*\*\*URL.7 (Privacy Policy and Terms and Conditions of the "AccessTicket" application) and \*\*\*URL.8 (General Terms and Conditions of ticket sales and access applicable to the Primavera Sound Barcelona 2023 and Primavera Sound Madrid 2023 festivals) is documented.

In the annex related to the information provided on the website about the Privacy Policy of the "ACCESSTICKET" application, the following details are provided:

- 1). the identity and contact details of the responsible party;
- 2) the contact details of the data protection officer;
- 3) the purposes of processing personal data;
- 4) the legal bases for processing;
- 5) retention period of personal data;
- 6) with whom personal data may be shared;
- 7) categories of personal data;
- 8) data protection rights.

Regarding the general terms and conditions of ticket sales and access to the 2023 festivals, it is indicated that to access the venue, the ticket must be shown through the means indicated by the organization. The organization may replace the previous access method with another means "which could be, for example, through the use of an application on a smartphone device." It is also indicated that "it will be essential to carry an official identity document at all times."

On October 26, 2022, they navigated the archive of websites: \*\*\*URL.9.

The result of the consultation conducted on the website \*\*\*URL.10 (General Terms and Conditions of tickets. Primavera Sound Festival Barcelona 2022), archived at \*\*\*URL.9 on March 2, 2021, at 12:04, is documented.

The information provided on this website for access to the Primavera Sound Festival Barcelona 2022

specifies the following:

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7/16

- "To enter the venue, you must show your ticket, which will be scanned for verification. It is essential to carry an official identification document at all times [...]"

- "At all times, both parents or legal guardians and the minor must carry their ID card or passport in case it is required by the organization's staff to verify their identity [...]"

It is concluded that no prior information is provided regarding the use of a mobile application for access to the venue, but there is a warning about the necessity of carrying an identification document during the stay at the festival.

- 3 -

On October 25, 2022, a request for information is made to PRIMAVERA.

PRIMAVERA requests an extension of the deadline and responds to this request for information on November 17, 2022, providing the following documentation:

- Response letter.

- Explanation and screenshots of the application.

- Data Processing Agreement – Contract for the processing of data between PRIMAVERA and SUM AND SUBSTANCE LTD (hereinafter SUM).

- Access operation without APP.

- Record of Processing Activities (hereinafter, RAT) (Excel format).

- Summary of results of Impact Assessment and Risk Analysis.

- Annex III: Privacy policy of the Primavera Sound application "AccessTicket".

- General terms and conditions of ticket sales and access applicable to the Primavera Sound Barcelona 2022 festival.

- Screenshot of the claimant's data that they maintain in their systems.

- Impact assessment, with the analysis of inherent threats and risks (Excel format).

Explanation and screenshots of the application, that is, it explains and provides screenshots of the application from its download in the stores, at the moment of validating a ticket, registering and including the personal data of the attendee, and at the moment of uploading the documentation photographs to verify identity.

Analyzing the screenshots, it is evident that registration in the app is done with an email and that a photo of the identification document is requested to add personal data and validate user registration, through a KYC (Know Your Customer) process. Before uploading the documentation, the user must accept "I accept to be informed of my rights and have read the Privacy Policy regarding the upload of documentation and the processing of my personal data."

Certain test texts are also observed in some of the screenshots, which will be consulted in a subsequent request.

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8/16

Regarding access to the event without the app, PRIMAVERA provides the annex, which highlights that the festival attendee can present themselves at the incident area of the event with the purchase email that includes the necessary information to manually locate the ticket in the database. There, the support agent:

- Manually verifies the identity of the attendee and fills in the relevant data in the system (name + age + ticket code + ticket type).

- Captures an image of the attendee and uploads it to the user profile in the AccessTicket database.

- Prints a wristband with the ticket QR code, the name of the attendee, and the type of ticket.
- The QR printed on the wristband is normally read on access verification devices, showing the validator the photo of the attendee.
- Based on the identification through the photo and confirmed validity of the ticket, the agent can allow access to the venue.

Reviewed the annex in English, Data Processing Agreement (Contract for the processing of data between both entities), it is perceived that the document corresponds to annex 3 of a contract starting on April 1, 2022, between the entities PRIMAVERA, acting as the data controller in the processing contract, and SUM AND SUBSTANCE LTD, acting as the processor, and that in this processing contract, the aspects specified in Article 28.3 of the GDPR are taken into account.

The information provided in the Privacy Policy of the "ACCESSTICKET" application contained in Annex III of the document matches what is stated in Annex 1.

Analyzing the RAT, it is verified in entry No. 10 the processing "Attendance at festivals," whose purpose is the Management of the celebration of festivals in relation to customer attendance, legally based on the Execution of a contractual relationship and legitimate interest, and described as "Management of entry to the festivals of those customers who have downloaded the AccessTicket application. Prevention of fraud by preventing the same QR code from being used multiple times for the same ticket."

The types of data processed are: Identifying and contact data (name and surname and ID or identification document, photograph, email, phone number, date of birth) and information related to the purchased ticket.

Regarding sensitive data that may be processed, it is identified "In case of using the AccessTicket application or if a photograph is necessary upon entry to the festival."

Regarding the Impact Assessment and Risk Analysis, PRIMAVERA indicates the following information and statements:

1.- Description of the processing.

(...).

2.- Analysis of the necessity and proportionality of the processing.

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9/16

(a) Introduction: facial image as personal data

(...).

(b) Data minimization principle and proportionality principle

.. (i) Suitability assessment.

(...).

.. (ii) Necessity assessment.

(...).

.. (iii) Strict proportionality assessment.

(...).

(c) Legal basis

(...).

3.- Analysis of relevant risks

(...).

4.- Measures planned to counteract the risks

(...).

5.- Conclusion

PRIMAVERA concludes that the assessment following the risk analysis is favorable, therefore the processing activity can be carried out, provided that the control measures included in the summary and in the impact assessment are fully implemented by PRIMAVERA.

Regarding the screenshot of the claimant's data that they maintain in their systems, PRIMAVERA

provides a list showing the claimant's email address along with information on the entries, but without any other associated personal data.

-4.-

On January 26, 2023, a second request for additional information is made to PRIMAVERA to clarify the doubts arising from their response to the first request.

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10/16

PRIMAVERA responds to this information request on February 10, 2022, providing the following documentation:

- Written response to the request, accompanied by an attachment containing the following documents:
- Screenshots of the application at the time of entering the personal data of the attendee.
- Confirmation that the screenshot provided in Step 5 corresponds to the actual installed application and not to a test application.
- Privacy policy provided to AccessTicket users.
- Screenshots that prove that the information provided corresponds to the actual installed application.
- Contract with the provider SUM AND SUBSTANCE LTD.

Regarding the questions raised by the Agency about the app, PRIMAVERA states that it accompanies the document “as Annex No. 1 an illustrative video in which it is possible not only to visually reflect each of the explanations provided, but also to obtain a global view of AccessTicket and its operation [...] Without prejudice to the fact that each of the questions raised will be addressed individually and in detail in the following paragraphs.” The mentioned video has not been attached to the response to the second information request, but all doubts have been clarified individually and evidenced through the images provided.

1.- The respondent indicates that the personal data requested in the application when clicking "Add personal information" are the phone number and postal code, and their entry is optional. It justifies the request for the phone number by stating that it allows for a method of contact through which incidents occurring in the process of creating and validating the entry can be resolved quickly. Regarding the postal code, PRIMAVERA states that it is requested for statistical purposes.

2.- In relation to the confirmation that the screenshots provided in the response to the first request correspond to the actual installed application and not to a test application, PRIMAVERA justifies it by clarifying that “at the time of receiving the first request from this Agency, the Application was no longer active, so in order to comply with the information requests made at that time, it was necessary to reactivate it and carry out the relevant tests.”

It is noted that, prior to registration in the app, the user must accept the upload of their identification documentation and expressly consent to the processing of their personal data under the terms established in the privacy policy. The link in the app directs to the same text obtained by the inspector in webarchive.

3.- Regarding the reason why a photograph of the back of the ID card is requested in the app, PRIMAVERA justifies it “by stating that it was essential to perform a matching.

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11/16

between the information contained on the front of the document and that indicated on the back of the same to confirm the validity of the document. On many occasions, the quality of the photographs provided and/or scanned was poor, which made it difficult and/or prevented the verification of the users' identity. In these cases, the joint review of the front and back of the national identity document allowed for the assurance that the document was indeed valid and in force.”

4.- When consulted about the process followed to obtain the consent of the holders of a ticket to the festival for the processing of their facial image in case they choose manual verification of their ticket, the responding party indicates that the information to attendees regarding the processing of their photograph is provided verbally ("in particular, regarding the need to verify their identity, as well as to allow them to avoid repeating the same manual process during the subsequent days of the festival").

5.- PRIMAVERA provides the (complete) Contract maintained with the supplier SUM for the processing of personal data of festival attendees. In the Specification section, all the services that SUM can provide to PRIMAVERA are detailed, including KYC (Know Your Customer). In Annex 2 (Price List // Lista de precios), the services actually acquired are marked:

- Identity Document Verification // Verificación del documento de identidad
- Automated data extraction (Basic five fields) // Extracción automatizada de datos (Campos básicos)
- Web SDK and Mobile SDK (SDK - Software Development Kit // Kit de desarrollo de software)

Regarding Confidentiality and Data Protection, it is specified that (translation) "SUM will guarantee the level of protection of the personal data it receives at the level required by the applicable law for such personal data, including GDPR. The regime of Personal Data Protection is established in Annex 3 of the contract." This Annex coincides with the document Data Processing Agreement (Contrato de encargo del tratamiento), previously analyzed.

6.- Finally, the responding party confirms that it does not possess any other personal data of the claimant other than the email address. "The rest of the personal data processed by Primavera Sound in relation to the Claimant and in the context of their attendance at the festival were duly deleted once two (2) weeks had passed since the celebration of the Primavera Sound festival, with the Company not having any other personal information of the Claimant in its files."

#### LEGAL GROUNDS

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12/16

I

#### Competence

In accordance with the functions conferred on each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative proceedings.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

#### Lawfulness of Processing

Article 6 of the GDPR under the heading "Lawfulness of processing" specifies in its paragraph 1 the circumstances under which the processing of third-party data is considered lawful:

"1. Processing shall be lawful only if it meets at least one of the following conditions:

- a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person.
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

The provisions of point f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

On this issue of the lawfulness of processing, Recital 40 of the aforementioned GDPR also emphasizes that "For processing to be lawful, personal data must be processed with the consent of the data subject or on some other legitimate basis laid down by law, whether in this Regulation or under other Union or Member State law to which this Regulation applies, including the necessity of complying with a legal obligation applicable to the controller or the necessity of executing a contract with the data subject."

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13/16

"that the interested party is involved or for the purpose of taking measures at the request of the interested party prior to the conclusion of a contract."

It should be noted that the processing of data requires the existence of a legal basis that legitimizes it. In accordance with Article 6.1 of the GDPR, in addition to consent, there are other possible bases that legitimize the processing of data without the need for the authorization of its owner, in particular, when it is necessary for the execution of a contract in which the affected party is involved or for the application, at their request, of pre-contractual measures, or when it is necessary for the satisfaction of legitimate interests pursued by the data controller or by a third party, provided that those interests do not prevail over the interests or the rights and fundamental freedoms of the affected party that require the protection of such data.

Processing is also considered lawful when it is necessary for compliance with a legal obligation applicable to the data controller, to protect vital interests of the affected party or of another natural person, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller.

### III

Principles relating to processing

Letter c) of Article 5.1 of the GDPR advocates:

"1. Personal data shall be:

(...)

c) adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed ('data minimization');"

### IV

Information to be provided when personal data is obtained from the interested party.

Article 13 of the GDPR establishes the information that must be provided when personal data is obtained from the interested party, according to which:

"1. When personal data relating to the interested party is obtained from them, the data controller shall provide them with all the information indicated below at the time the data is obtained:

a) the identity and contact details of the controller and, where applicable, of their representative;

b) the contact details of the data protection officer, where applicable;

c) the purposes of the processing for which the personal data are intended and the legal basis for the processing;

d) when the processing is based on Article 6(1)(f), the legitimate interests of the controller or of a third party;

e) the recipients or categories of recipients of the personal data, where applicable;

f) where applicable, the intention of the controller to transfer personal data to a third country or

international organization and the existence or absence of an adequacy decision by the Commission, or, in the case of transfers referred to in Articles 46 or 47 or Article 49(1), second paragraph, reference to the appropriate safeguards and the means to obtain a copy of them or the place where they have been made available.

2. In addition to the information mentioned in paragraph 1, the data controller shall provide the interested party, at the time the personal data is obtained, with the following information necessary to ensure fair and transparent data processing:

- a) the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period;
- b) the existence of the right to request from the controller access to personal data relating to the interested party, and their rectification or erasure, or the restriction of processing, or to object to the processing, as well as the right to data portability;
- c) when the processing is based on Article 6(1)(a) or Article 9(2)(a), the existence of the right to withdraw consent at any time, without affecting the lawfulness of the processing based on the consent before its withdrawal;
- d) the right to lodge a complaint with a supervisory authority;
- e) whether the communication of personal data is a legal or contractual requirement, or a requirement necessary to enter into a contract, and whether the interested party is obliged to provide the personal data and has been informed of the possible consequences of not providing such data;
- f) the existence of automated decision-making, including profiling, referred to in Article 22(1) and (4), and, at least in such cases, meaningful information about the logic involved, as well as the significance and the envisaged consequences of such processing for the interested party.

3. When the data controller intends to process personal data for a purpose other than that for which they were collected, they shall provide the interested party, prior to that further processing, information on that other purpose and any other relevant information pursuant to paragraph 2.

The provisions of paragraphs 1, 2, and 3 shall not apply when and to the extent that the interested party already has the information."

V

#### Conclusion

In this case, a complaint has been filed against the entity PRIMAVERA SOUND, S.L. for the alleged obligation to provide the ID card in the "AccessTicket" application for the registration of attendees at a festival.

The investigative actions carried out have confirmed that in the registration process it is not mandatory to provide the ID card in the app to access the festival. In fact, in the event that attendees do not wish to use the "AccessTicket" application, they still have the option to verify their identity physically,

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15/16

showing the email containing the confirmation of the purchase of the ticket.

While the image of the attendees is taken, which is stored in the "AccessTicket" application, in order to visually verify, at the festival entrances, that the profile picture in the application and the attendee are the same person, the rest of their personal data is checked manually.

Furthermore, evidence has been obtained that, at the time of ticket sales, the user was informed of the need to carry an ID at all times and that, prior to registration in the app, the user had to accept the upload of their identification documentation and expressly consent to the processing of their personal data under the terms established in the privacy policy.

In this regard, it should be noted that the purpose set out in section 3.a) of the App's privacy policy is supported by the lawful basis of art. 6.1.b) of the GDPR: when the ticket is validated to access the Primavera Sound festival in Spain and/or products are purchased through the app, that is, the processing is necessary for the performance of a contract in which the data subject is a party or for the

application at their request of pre-contractual measures.

Regarding the data that AccessTicket collects from the official identity document, they are: first name and last name, date of birth, and image of the National Identity Document.

In this sense, the respondent has presented an assessment of the necessity and proportionality of the data processed and whether the intended purpose could be achieved in a less intrusive manner, in order to justify the principle of data minimization and proportionality, article 5.1.c) of the GDPR. In this case, the data subject to processing is the minimum necessary for verifying the identity of the festival attendees.

On the other hand, it has been confirmed that the privacy policy informs of all the points required in article 13 of the GDPR. Furthermore, it specifies that all data captured from the official identity document will be deleted two weeks after the event. It has been verified that currently the respondent does not hold any personal data of the claimant beyond their email address.

Therefore, based on the information indicated in the previous paragraphs and after the analysis conducted on the submitted documents and the concurrent circumstances, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection.

Thus, in accordance with the aforementioned, the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO FILE the present proceedings.

C/ Jorge Juan, 6

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16/16

SECOND: TO NOTIFY this resolution to PRIMAVERA SOUND, S.L. and to the claimant.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by art. 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of arts. 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

940-020323

Mar España Martí

Director of the Spanish Agency for Data Protection

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